

Shamrock Addition Planned Unit Development (P.U.D.)

Principals: Thomas M. Maher and Margaret L. Maher, 201 N. Euclid Ave., Pierre, SD, (605) 224-0491

Engineer:

1. **Drainage & Erosion Control:** Brosz Engineering, Inc., Pierre, SD
2. **Geotechnical Study:** American Technical Services, Inc., Black Hawk, SD

Surveyor: Thielen Surveying & Mapping, Inc., Pierre, SD, (605) 224-1587

Development: Shamrock Addition

Legal Description: Shamrock Addition, NE1/4 Section 23, T111N, R79W, Hughes County, South Dakota.

Pursuant to sections 10-101 through 10-103 of the Hughes County Ordinances attached hereto is a plat for Shamrock Addition Planned Unit Development, located in rural Hughes County, South Dakota. That said P.U.D. includes the development of residential lots, and attaches to the Local Business Lot fronting Highway 14/83 and part of 293rd Avenue.

Also attached hereto is a copy of the DECLARATION OF PROTECTIVE AND RESTRICTIVE COVENANTS which provides restrictions on the use and development of the property, all designed to enhance the character of the housing, the residential buildings, and the use of the lots.

The Planned Unit Development includes the following provisions:

1. **Lot Size and Purpose:** The lots will range in size not less than 43,560 square feet more or less and shall be used solely for residential purposes.
2. **Dwelling Type:** Building construction shall be limited to use permitted in "Ag C" zoning. The structures shall meet, at a minimum, the requirements of the current Uniform Building Code, National Electric Code and the National Plumbing Code. See also Restrictive Covenants.
5. **Utilities:** Water will be provided by Mid-Dakota Rural Water System, electricity will be supplied by Oahe Electric, and wastewater systems will be individual septic tanks with tile fields.
6. **Property Owner's Association:** By acceptance of the deed or other instrument of conveyance for his or her lot with the subdivision, the lot owner shall be a member of the Shamrock Addition Property Owner's

Association and covenants and agrees to abide by the Association's by-laws, rules and regulations and agrees to pay the Association's annual assessments or dues and special assessments, payable in advance for maintenance and repair of roads, snow removal, and enforcement of the covenants.

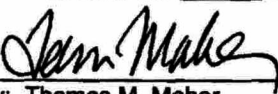
7. **Roadways:** Shamrock Addition's roads are private roads to be maintained and repaired by the lot owners and the Shamrock Addition Property Owner's Association through annual assessments.

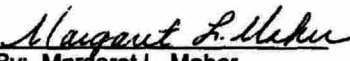
8. **Animals:** Animals may not be raised, bred, or kept for commercial purposes and, those animals kept outside shall be limited to not more than three (3) adult (over six month of age) dogs, three (3) adult cats, and four (4) adult horses.

Pursuant to sections 10-102 and 10-103 of the Hughes County Ordinances, the proposed development meets the following conditions:

1. The development plan is consistent with the intent and purposes of the Hughes County Zoning Ordinance to promote the public health, safety, morals and general welfare.
2. The single family residences will not adversely impact the adjoining agricultural and residential property, which is Zoned Ag "C" to the West, Ag "B" to the North and "Local Business" to the South. The development will enhance the value of the adjoining property.
3. There shall be compliance with the sediment and erosion control standards of the Hughes County Conservation District.

DATED this 23rd day of November, 1999.

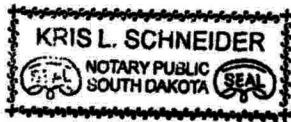

By: Thomas M. Maher


By: Margaret L. Maher

State of South Dakota)
 :ss
County of Hughes)

On the 23rd day of November, 1999, before me, the undersigned officer, personally appeared THOMAS M. MAHER and MARGARET L. MAHER, as

owners of the aforementioned property executed the foregoing instrument for the purposes therein contained, by signing their names as such owners.



(SEAL)

Kris L. Schneider
Notary Public - South Dakota

My commission expires: 7-12-2005

#8651

STATE OF SOUTH DAKOTA } ss.
County of Hughes

Filed for record this 23 day of Nov., 1999
at 9:30 o'clock A. M., and recorded on Disk 1B

of #8651
[Signature]
Registrar of Deeds Deputy

Fee \$14.00



Prepared by: Thomas P. Maher
MAHER & ARENDT
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